

26VECV00255 26VECV00255

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-20

Motion: MOTION TO SET ASIDE ENTRY OF DEFAULT AND DEFAULT JUDGMENT

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Case Number: 26VECV00255 Hearing Date: August 20, 2026 Dept: I

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

FORD MOTOR

CREDIT COMPANY LLC,

Plaintiff,

vs.

WILLY VALDIVIESO, et al.,

Defendants.

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CASE

NO: 26VECV00255

[TENTATIVE]

ORDER RE: MOTION TO SET ASIDE ENTRY OF DEFAULT AND DEFAULT JUDGMENT

Dept.

I

HEARING

DATE: August 20, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: January 15, 2026

TRIAL

DATE: None set.

I.

BACKGROUND

This action arising out of a written Retail Installment contract for a vehicle between Galpin Motors Inc. ("Galpin") and Defendants Willy Valdivieso ("Valdivieso") and DOES 1 through 10 (collectively, "Defendants"), which was assigned to Plaintiff Ford Motor Credit Company LLC ("Plaintiff"). On January 15, 2026, Plaintiff filed the operative Complaint against Defendants, alleging a sole cause of action for Breach of Contract.

On April 8, 2026, default was entered against Valdivieso.

On June 25, 2026, Valdivieso filed a Motion to Set Aside Entry of Default. On June 26, 2026, default judgment was entered against Valdivieso. On July 17, 2026, Valdivieso filed the instant Application to Set Aside Entry of Default and Default Judgment. On August 6, 2026, Plaintiff filed a Notice of Non-Opposition to the Application to Set Aside Entry of Default and Default Judgment.

II.

LEGAL

STANDARDS

Pursuant to the Code of Civil Procedure Section 473, subdivision (b), a court may "relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) In addition, a court must vacate a default or dismissal when a motion for relief under Section 473, subdivision (b) is filed timely and accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise or neglect "unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise or neglect." (Id.)

The party or the legal representative must seek such relief "within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc., § 473, subd. (b); see *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 980 ["because more than six months had

elapsed from the entry of default, and hence relief under section 473 was unavailable”]; *People v. The North River Ins. Co.* (2011) 200 Cal.App.4th 712, 721 [motion for relief under section 473 must be brought “within a reasonable time, in no case exceeding six months”]). “The six-month limit is mandatory; a court has no authority to grant relief under section 473, subdivision (b), unless an application is made within the six-month period.” (*Arambula v. Union Carbide Corp.* (2005) 128 Cal.App.4th 333, 340, citations omitted.)

Likewise,

“[t]he court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.” (Code Civ. Proc., § 473, subd. (d).) Essentially, “[a] court of general jurisdiction has the power, after final judgment, and regardless of lapse of time, to correct clerical errors or misprisions in its records, whether made by the clerk, counsel, or the court itself, so that the records will conform to and speak the truth. [Citations.]” (*Ames v. Paley* (2001) 89 Cal.App.4th 668, 672 [emphasis added].) However, the judgment must be void on its face. (*Braugh v. Dow* (2023) 93 Cal.App.5th 76, 86.) “A judgment ‘is considered void on its face only when the invalidity is apparent from an inspection of the judgment roll or court record without consideration of extrinsic evidence.’ ” (*Id.* at 87.) “When a default judgment has been taken, the judgment roll consists of ‘the summons, with the affidavit or proof of service; the complaint; the request for entry of default ..., and a copy of the judgment.’ ” (*Id.*)

III.

DISCUSSION

Here,

the Court entered default judgment against Valdivieso in the amount of \$40,917.03 consisting of: (1) \$36,136.81 in damages; (2) \$2,792.12 in prejudgment interest; (3) \$1,474.10 in attorney fees; and (4) \$514.00 in costs. (Default Judg., 6/26/26.) Valdivieso now moves for an order setting aside and vacating the default judgment on the grounds that service of process was defective and/or did not occur in the manner represented in the purported proof of service.

The

proof of service of the summons and complaint filed by Plaintiff indicates that

Valdivieso was served via substituted service on February 18, 2026 by leaving the documents with a “Jane Doe,” 40 years-old, 5'6, 130 lbs, brown hair, Hispanic female. (See POS, 3/4/26.)

“If a

copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served, as specified in Section 416.60, 416.70, 416.80, or 416.90, a summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of their office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. Service of a summons in this manner is deemed complete on the 10th day after the mailing.” (Code Civ. Proc., § 415.20, subd. (b) [emphasis added].)

Valdivieso

does not dispute that the proof of service contains his correct residential address. (Valdivieso Decl., ¶3.) However, Valdivieso states that he lives at this residence with his wife, Yeny Delgado and neither of them were personally served with the summons and complaint from any person or process server. (Id., ¶¶4-5.) Ms. Delgado confirmed the same. (Delgado Decl., ¶¶2, 4-5.) Only Valdivieso and his wife are members of their household. To the extent that neither Valdivieso nor his wife, Ms. Delgado, were present at their residence when the alleged substituted service was completed, then the proof of service is void because it was not left with a competent member of Valdivieso's household.

Assuming

arguendo that substituted service was properly effectuated, Valdivieso contends that he is entitled to relief due to excusable neglect because he would not have been able to address any legal matter at the time service was purportedly made since he was recovering from knee surgery, as well as receiving treatment for hypertension and other related health issues.

(Valdivieso Decl., ¶¶8-9.) The Court agrees. A reasonable person under similar circumstances, i.e., recovering from major surgery and under other medical treatment would have likely failed to file a timely Answer and/or otherwise participate

in the legal proceedings in a meaningful way. (See Baratti v. Baratti (1952) 109 Cal.App.2d 917, 921 ["[E]xcusable neglect" referred to in the section is that neglect which might have been the act of a reasonably prudent person under the same circumstances."].) Plaintiff does not oppose the requested relief. (Chen Decl., ¶¶4-5; Not. of Non-Opposition, 8/6/26.)

A. CONCLUSION

Defendant

Willy Valdivieso's Motion to Set Aside Entry of Default and Default Judgment is GRANTED. The case is restored to active status.

The

proposed Answer attached to the moving papers shall be separately filed and served within 5 days of this Order.

The

Court schedules a Case Management Conference for 11/24/2026

Defendant

Willy Valdivieso to give notice.

Dated: August

20, 2026

Hon. Karen Moskowitz

Judge

of the Superior Court

11/24/2026